A proof of service filed January 22, 2026, reflects personal service of the summons and complaint on Defendant NORMA R. WATSON by registered process server Carlo Perez on Saturday, December 10, 2025 at 4:00 p.m.

On January 16, 2026, a request for entry of default was mailed to NORMA R. WATSON by Carlo Perez. Default was entered by the clerk on January 22, 2026.

On behalf of NORMA WATSON, through her attorneys-in-fact, counsel moves to set aside the default on the basis that WATSON suffers from cognitive impairments that affected her ability to understand that she was being sued and therefore deprived her of "notice." (Notably, this assertion is not supported by any medical evidence, and is further undermined by her signature on the power of attorney on March 9, 2026. If WATSON was cognitively incapacitated on December 10, 2025, it would seem she would be incapacitated on March 9, 2026 and not capable of consenting to a power of attorney.)

Code of Civil Procedure section 473(b) allows relief from entry of default upon motion for "mistake, inadvertence, surprise or excusable neglect." Motions for such relief must be filed within 6 months of the default. 6 months or 180 days from January 22, 2026, was July 22, 2026. The motion to set aside the default was not filed until July 28, 2026 and is untimely.

The six month deadline provided by Code of Civil Procedure section 473(b) is mandatory and jurisdictional. (*Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318; *Arambula v Union Carbide Corp*. (2005) 128 Cal.App.4th 333, 340.) Because the summons and complaint was personally served by a registered process server, Code of Civil Procedure section 473.5(a)(i) does not apply.

The motion to set aside the default is DENIED.

FERNANDEZ v. DOUBLE TREE BY HILTON HOTEL & SPA, et al.
Case No. CU25-09875

Motion by Defendant BUTTERFLY EFFECT HOTELS, LLC to Compel Arbitration

<u>TENTATIVE RULING:</u>

Defendants' motion to compel arbitration is DENIED.

<u>Existence of Agreement to Arbitrate</u>

A petitioner seeking to compel arbitration bears the burden of establishing the existence of a valid arbitration agreement and the respondent shoulders the burden of proving facts for nonenforcement. (*Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413; *Banner Entm't, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356.) Once a petitioner satisfies the burden of proving that an agreement to arbitrate exists, the opposing party has the burden of proving the facts of any defense to enforceability by a preponderance of the evidence. (*Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

Plaintiff FERNANDEZ worked as a Laundry Attendant for Defendants for seven years. There is no dispute that as part of the onboarding process, Plaintiff executed an employment agreement that contained a provision requiring arbitration agreement requiring the parties to arbitrate only wrongful termination claims. (Burrow Decl., Exh. A, ¶ 7.)

Evidentiary Objections

The court sustains the objection to Margarita FERNANDEZ's declaration as lacking foundation and hearsay. FERNANDEZ attests that she cannot read in English but signed a declaration written in English that was read to her in Spanish. The court has no evidence as to what was read to FERNANDEZ and by whom or whether that is accurate. There is no evidence that FERNANDEZ is unable to read in Spanish. The proper procedure would be to have FERNANDEZ sign a declaration written in Spanish and to have that declaration translated by a certified translator.

It is unnecessary for the court to rule on any other evidentiary objections advanced by Defendants which are not necessary to rule on this motion.

Agreement Is Unconscionable

Though California and federal law alike favor arbitration, general contract defenses such as unconscionability may be applied to invalidate arbitration agreements. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*Kho*).) A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree ("procedural unconscionability") and the contract contains terms that are unreasonably favorable to the other party ("substantive unconscionability"). (*Ibid*.) Both forms of unconscionability must be present for a contract to be found unconscionable overall, but a high degree of one form of unconscionability will reduce the amount of the other form that must be present in order to support an ultimate finding of unconscionability. (*Id*. at pp. 125-126.) The ultimate issue is whether a contract is sufficiently unfair in light of all of the circumstances that a court should refuse enforcement. (*Id*. at p. 126.) A party asserting unconscionability bears the burden of proof. (*Ibid*.)

Procedural unconscionability analysis begins with determining whether a contract is one of adhesion. (*Kho*, *supra*, 8 Cal.5th at p. 126.) A contract of adhesion is standardized, on a preprinted form, and presented on a "take it or leave it" basis. (*Ibid*.) After determining that a contract is one of adhesion a court must analyze whether the circumstances of the contract's formation created such oppression or surprise that further inspection of fairness should be done. (*Kho* at p. 126.) "Oppression" here refers to a lack of negotiation and meaningful choice; "surprise" to hiding contractual provisions within prolix printed forms. (*Ibid*.)

Circumstances relevant to establishing oppression include, without limitation, the amount of time given the party to consider the contract, pressure exerted on the party to sign, the length and complexity of the contract and the challenged provision, the education and experience of the party, and whether the party had the aid of an attorney. (*Kho*, *supra*, 8 Cal.5th at 126-127.)

Analysis of substantive unconscionability is a matter of seeking out terms that are overly harsh, unduly oppressive, or unfairly one-sided. (*Kho*, *supra*, 8 Cal.5th at pp. 129-130.) Unconscionable terms impair the integrity of the bargaining process, attempt to impermissibly alter fundamental legal duties, or otherwise contravene public interests and policies. (*Id*. at p. 130.) They might include, without limitation, fine-print terms, unreasonably or unexpectedly harsh terms regarding the central aspects of the transaction, or terms that undermine the non-drafting party's reasonable expectations. (*Ibid*.)

Both procedural and substantive unconscionability must be present in order for the court to find a contract unenforceable due to unconscionability. However, procedural and substantive unconscionability need not be present in the same degree. A sliding scale is applied. That is, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa. (*A&M Produce Co. v. FMC Corp*. (1982) 135 Cal.App.3d 473, 487).

Procedural Unconscionability

Plaintiff presents no admissible evidence of surprise or oppression. It is undisputed that the arbitration agreement was presented with onboarding documents and in a contract of adhesion as a condition of Plaintiff's employment. (Burrow Decl., ¶¶ 5-6.)

As to Plaintiff's claims that she could not read the arbitration agreement, the court notes that she initialed each paragraph in person and signed the document. Defendant presents evidence that she completed other onboarding documents without assistance. (Burrow Decl., ¶¶ 5, 9, 10.) No admissible evidence is presented that Plaintiff could not read or did not understand the employment agreement that she completed.

The court finds some minimum amount of procedural unconscionability. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493; *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915.)

Substantive Unconscionability

Significant substantive unconscionability is present with this arbitration agreement.

First, the arbitration agreement creates an artificial 120-day limitations period as well as unilateral and unreasonable timelines regarding communication regarding selection of arbitrators and hearing dates which benefits only the employer

Second, the arbitration agreement provides discretion to the arbitrator to impose on the employee all of the costs of arbitration.

Third, the court independently notes that the arbitration provision is unilateral, applying only to claims by an employee against the employer, and not bilateral, to include claims by the employer against the employee. This is further emphasized by the “reminder” paragraph that the Employer can still seek to enforce the agreement in court rather than the ability of **both parties** to seek injunctive relief in court despite the arbitration provisions.

Finally, the court notes that wage and hour, invasion of privacy, fraud and whistle-blowing claims not related to termination would not be subject to the arbitration provisions. The effect of enforcing the arbitration agreement as to only a subset of Plaintiff’s claims would be to stay the balance of Plaintiff’s claims pending completion of arbitration and to cause significant increase in the cost of litigation and delay. Again, this is another effect that benefits solely the Employer.

The employment agreement contains a severability clause. The court considered severance of these terms, but exercises its discretion to decline to sever the unconscionable terms to permit enforcement of enforce the balance of the arbitration agreement. (*Cook v. University of Southern California* (2024) 102 CalApp.5th 312.) The sole purpose of these terms was to unfairly discourage employees from exercising their rights to address workplace claims to the sole benefit of the employer.

<u>Conclusion</u>

The motion to compel arbitration is DENIED.

SHAYLA LEWELLEN v. CITY OF FAIRFIELD et al.
Case No. CU25-12033

CAP SOLANO’s Demurrer; SCTA’s Demurrer

<u>TENTATIVE RULING</u>

Counsel for moving parties shall appear. The moving papers fail to provide notice of the court’s tentative ruling system as required by Local Rule 3.9.

The demurrers by Defendants CAP SOLANO JPA (“CAP SOLANO”) and SOLANO COUNTY TRANSPORTATION AUTHORITY (“SCTA”) to Plaintiff’s complaint are both SUSTAINED WITHOUT LEAVE TO AMEND.

Each demurrer is not moot. On August 13, 2026, Plaintiff filed an opposition to a demurrer prior to the August 20, 2026 hearing on the demurrer brought by Defendants CITY OF FAIRFIELD (“FAIRFIELD”), CATHERINE MOY, DAVID GASSAWAY, and SAMANTHA BURROWS but did not specify to which of the pending demurrers the